Fiscal Impact Statement

Legislative Council Staff
Nonpartisan Services for Colorado's Legislature

AMENDMENT 82: CONSTITUTIONAL RIGHT TO PURCHASE AND SELL NATURAL GAS

Analyst: Colin Gaiser, colin.gaiser@coleg.gov, 303-866-2677

Date: September 10, 2026

Summary Information

Overview. The measure creates a constitutional right for distributors to sell and consumers to purchase natural gas for cooking and heating.

Types of impacts. The measure is projected to affect the following areas:

- State Expenditures
- Local Government

Disclaimer. This fiscal impact statement has been prepared for a statewide ballot measure appearing at the 2026 statewide election. Any appropriations required to implement this measure will be addressed through the annual or supplemental budget process if this measure is approved by voters. For more information about this measure, please see the ballot information booklet.

Table 1
State Fiscal Impacts

Type of Impact	Current Year FY 2026-27	Budget Year FY 2027-28
State Revenue	$0	$0
State Expenditures	$0	$0
Transferred Funds	$0	$0
Change in TABOR Refunds	$0	$0
Change in State FTE	0.0 FTE	0.0 FTE

Amendment 82

Summary of Measure

Amendment 82 creates a constitutional right for consumers to purchase natural gas for cooking or heating, and for distributors and utilities to sell natural gas for use in homes and businesses.

State Expenditures

The measure may increase expenditures for state agencies to revise technical assistance to local governments concerning building codes that conflict with the right to purchase or sell natural gas. The measure may also increase workload and legal services for state agencies implementing the state's greenhouse gas emissions reduction plan.

Local Government

Local governments that currently have or are considering building codes that prohibit or restrict natural gas in commercial and residential development will have increased costs to conform the codes with state law, and to modify permitting, inspection, and compliance activities.

Effective Date

If approved by voters at the 2026 general election, this measure takes effect upon proclamation of the Governor, no later than 30 days after the official canvass of the vote is completed.

State and Local Government Contacts

Law

Local Affairs

Public Health and Environment

Regulatory Agencies